

AO/201/2021 on 9 November, 2021

IN THE HIGH COURT OF UTTARAKHAND
AT NAINITAL
THE HON'BLE THE CHIEF JUSTICE SRI RAGHVENDRA SINGH CHAUHAN

AND

THE HON'BLE SRI JUSTICE NARAYAN SINGH DHANIK

APPEAL FROM ORDER NO. 201 OF 2021

09TH NOVEMBER, 2021

BETWEEN:

Yogesh SinghAppellant.

And

Sangeeta ChauhanRespondent.

Counsel for the Appellant : Mr. Aditya Singh.

The Court made the following:

JUDGMENT:

(per Hon'ble The Chief Justice Sri Raghvendra Singh Chauhan) The appellant has challenged the legality of the order, dated 19.12.2020, passed by the learned Family Court, Haridwar, whereby the learned Family Court has dismissed the appellant's application for restoring the divorce suit.

2. Briefly, the facts of the case are that on 17.09.2015, the appellant-husband, Mr. Yogesh Singh, had filed a divorce suit under Section 13 of the Hindu Marriage Act against the respondent-wife, Ms. Sangeeta Chauhan. By order dated 18.09.2018, the issues were framed by the learned Family Court. On 18.09.2017, the appellant had submitted his affidavit which was treated as examination-in- chief. Therefore, he was directed to appear for cross- examination on 06.10.2017. However, the appellant did not appear for cross-examination on two occasions, namely on 19.01.2018 and 24.04.2018. On 30.05.2018, the matter was adjourned for 13.07.2018. On 13.07.2018, since the appellant did not appear before the Court, the learned Family Court dismissed the case for non-prosecution.

3. Aggrieved by the said order dated 13.07.2018, initially, the appellant filed an appeal before this Court. However, by order dated 03.12.2020, a learned Coordinate Bench directed the appellant to file a restoration application before the learned Family Court. Consequently, the said application was filed. However, by the impugned order dated 19.12.2020, the said application has been dismissed by the learned Family Court. Hence, this appeal against the order dated 19.12.2020.

4. Mr. Aditya Singh, the learned counsel for the appellant has raised the following contentions before this Court:-

Firstly, the learned Family Court is unjustified in claiming that the appellant has sought numerous adjournments. In fact, the appellant has sought adjournment only on four occasions, namely on 28.06.2017, 27.07.2017, 19.01.2018, and 24.04.2018.

Secondly, on 13.07.2018, there were two cases of the appellant pending before the learned Family Court: (i) The case filed by the respondent under Section 125 of the Code of Criminal Procedure; (ii) the divorce suit filed by the appellant. While the former case was taken up in the morning session, the latter case was taken up in the afternoon session. According to the learned counsel, the appellant was present before the learned Family Court in the morning session. However, while he was in the Court he was informed that his mother fell ill. Therefore, he could not attend the divorce suit in the afternoon session.

Thirdly, the reasoning given by the learned Family Court that the appellant has not paid the amount under Section 24 of the Hindu Marriage Act, and since he has not even bothered to pay the cost imposed by the Court in the divorce suit, the appellant is not entitled to have his divorce suit restored to its original number. According to the learned counsel, merely because the amount of expenses has not been paid by the appellant, he cannot be non-suited. Moreover, according to the learned counsel, the appellant has been paying the amount of expenses to the respondent. Therefore, according to the learned counsel, the impugned order dated 19.12.2020 deserves to be set-aside by this Court.

5. Heard the learned counsel for the appellant, examined the order-sheets of the learned Family Court, as submitted by the appellant, and perused the impugned order.

6. Admittedly, the divorce suit was filed on 17.09.2015. After framing of the issues on 11.08.2017, and after the submission of the affidavit by the appellant, on 18.09.2017, the case was listed repeatedly for cross-examination of the appellant. Admittedly, on 19.01.2018, since the appellant was absent, he was imposed with the cost of Rs.250/- and the last opportunity to the appellant to subject himself for cross-examination was given by the learned Family Court on the said date. Despite the fact that the last opportunity was given, in spite of the fact that the cost had been imposed, again on 24.04.2018, the appellant was absent from the Court. Moreover, the cost imposed was not even paid by him before the Court.

7. Although, the learned counsel for the appellant, submits that the appellant has paid the amount of expenses to the respondent from 2015 to December, 2017, but no evidence on this point has been submitted by the appellant before the learned Family Court, or even before this Court so far.

8. The appellant has taken a curious stand which is self-contradictory. For, in his application for restoration, he claims that on 13.07.2018 when he left his house, he was informed that his mother has suddenly fallen ill. He returned to his home, and took his mother to a Doctor. On the other hand, the learned counsel for the appellant has argued that, indeed, the appellant was available in the Court in the morning session, and it is only prior to the afternoon session that he was informed, in the Court, that his mother has fallen ill. Therefore, he was unable to attend the proceedings in the divorce suit in the afternoon session. These two facts cannot stand together. For, in the first

statement, the appellant claims that he could not even reach the Court, yet in the second statement, it has been argued that the appellant reached the Court, and appeared in the proceedings under Section 125 of Cr.P.C. in the morning session. Both these statements are self-contradictory.

9. Furthermore, according to the impugned order dated 19.12.2020, the appellant had not filed any medical certificate to establish the fact that his mother had, indeed, fallen ill on 13.07.2018. Therefore, the learned Family Court is justified in concluding that in absence of any medical certificate establishing the fact that appellant's mother had fallen ill on 13.07.2018, the said defence cannot be accepted.

10. A bare perusal of the impugned order dated 19.12.2020 clearly reveals that the learned Family Court has relied on the fact that even the amount of expenses has not been paid, and even the cost has not been paid, in order to draw two conclusions: firstly, the divorce suit was filed in the year 2015, and continued to be dragged for three years, and the fact that the appellant refused to comply with the orders of the Court clearly reveals the divorce proceeding is nothing but a means of harassing the respondent-wife. Secondly, such a person who does not comply with the orders of the Court certainly does not deserve any sympathy from the Courts. A person who shows no respect to the orders of the Court cannot expect the Court to show patience with him as a litigant. It is, indeed, an old saying that "those who take to the sword shall perish by the sword".

11. The conduct of the appellant clearly shows that he tends to make statements, such as that his mother had fallen ill on 13.07.2018 without any evidentiary basis. Moreover, although a statement has been made by the learned counsel for the appellant that the appellant has paid the amount of expenses, no evidence on this point has been submitted before this Court. Thus, the appellant seems to be in the habit of making such statements without any evidentiary basis. A litigant who tries to take the Court out for a ride by making such baseless statements does not deserve any mercy from the Court.

12. For the reasons stated above, this Court does not find any merit in this appeal. It is, hereby, dismissed.

(RAGHVENDRA SINGH CHAUHAN, C.J.) (N.S. DHANIK, J.) Dated: 09th November, 2021
NISHANT